

HOUSE No. 2657

The Commonwealth of Massachusetts

PRESENTED BY:

Jack Patrick Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a Purple Alert system in the commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>1/16/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/12/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/10/2025</i>

HOUSE No. 2657

By Representative Lewis of Framingham, a petition (accompanied by bill, House, No. 2657) of Jack Patrick Lewis and Patrick M. O'Connor that the Executive Office of Public Safety and Security establish a purple alert program to assist in identifying and locating missing persons with a disabilities. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a Purple Alert system in the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 22E the
2 following chapter:-

3 CHAPTER 22F. PURPLE ALERT PROGRAM TO ASSIST IN IDENTIFYING AND
4 LOCATING MISSING PERSONS WITH A DISABILITY

5 Section 1. As used in this chapter, the following words shall, unless the context clearly
6 requires otherwise, have the following meanings:

7 “Executive Office”, the executive office of public safety and security.

8 “Local law enforcement agency”, a local police or sheriff's office that has jurisdiction
9 over the area where a person became missing.

“Missing person with a disability”, an individual whose whereabouts are unknown and who has: (i) a mental or cognitive disability that is not Alzheimer's disease or a dementia-related disorder; (ii) an intellectual disability or a developmental disability including Down syndrome; (iii) a brain injury; (iv) another physical, mental, or emotional disability that is not related to substance abuse; or (v) a combination of any of these.

Section 2. (a) The executive office shall establish a Purple Alert Program to assist in identifying and locating missing persons with disabilities.

(b) The program shall include a system for rapidly disseminating information to the public, including descriptions, photographs and information about the missing person's disability and susceptibility to wandering behaviors.

(c) The Purple Alert system shall include procedures to monitor the use, activation and results of alerts and a strategy for informing and educating law enforcement, the media and other stakeholders concerning the alert.

Section 3. (a) After receiving missing person's report pursuant to section 4, a local law enforcement agency may activate a Purple Alert after determining that:

- (i) a person is a missing person with a disability as defined in section 1;
- (ii) there a credible threat that the missing person may be subject to immediate danger or serious bodily harm because of the person's disappearance;
- (iii) the missing person most likely cannot be returned to safety without law enforcement intervention; and

(iv) there is sufficient information available to disseminate to the public that could assist in locating the missing person.

(b) A local law enforcement agency may activate a Purple Alert notwithstanding the existence of an active Silver Alert or Amber Alert for the same missing person if the local law enforcement agency determines that a Purple Alert may improve the chances of finding the person.

Section 4. (a) To initiate a Purple Alert, the family, legal caregiver or custodian of the missing person shall file a missing person's report with the local law enforcement agency where the person became missing.

(b) Upon receiving a missing person's report, the local law enforcement agency shall:

(i) determine if the case meets the qualifying criteria for a Purple Alert set forth in subsection (a) of section 3;

(ii) notify the executive office and electronically send the completed Purple Alert forms and available photographs or images of the missing person;

(iii) enter the information into the National Crime Information Center (NCIC);

(iv) initiate an alert to all local law enforcement, E911 and first responders to search the immediate area;

(v) activate secondary alert systems to residents, businesses and broadcast media in the immediate area;

(vi) provide a 24-hour phone number to receive calls while continuing the investigation;
and

(vii) update the family, legal caregiver or custodian of the missing person as new
information becomes available.

Section 5. (a) The Purple Alert Program shall provide, to the greatest extent possible, for
the protection of the privacy, dignity and independence of the missing person by including
standards aimed at preventing the inadvertent or unnecessary broadcasting or dissemination of
sensitive health and diagnostic information.

(b) The broadcasting and dissemination of alerts and related information shall be limited
to the geographic areas where the missing person could reasonably be, considering the person's
circumstances and physical and mental condition, the potential modes of transportation available
to the person or suspected to be involved, and the known or suspected circumstances of the
person's disappearance.

Section 6. (a) A Purple Alert shall be terminated when the missing person is located or
when circumstances no longer warrant its continued activation.

(b) The local law enforcement agency that requested the activation of the Purple Alert
shall notify the executive office immediately upon locating the missing person or determining
that the alert should be terminated.

SECTION 2. This act shall take effect 90 days after passage.